

IN THE DISTRICT COURT OF TRAVIS COUNTY, TEXAS
CAUSE NO. D-2025-00418

MERIDIAN LOGISTICS SOLUTIONS, LLC,
Plaintiff,

v.

CASCADE RETAIL GROUP, INC.,
Defendant.

DEFENDANT'S ORIGINAL ANSWER

TO THE HONORABLE PATRICIA M. ALVAREZ AND TO PLAINTIFF MERIDIAN LOGISTICS
SOLUTIONS, LLC:

Defendant Cascade Retail Group, Inc., by and through its authorized representative Marcus T. Duvall of Duvall & Weber, LLP, files this Original Answer to Plaintiff's Original Petition and in support thereof would respectfully show the Court the following:

I. GENERAL DENIAL

1. Defendant generally denies each and every allegation in Plaintiff's Original Petition, except those allegations specifically admitted herein.
2. Defendant denies that it has failed or refused to pay any amounts lawfully due and owing to Plaintiff.

II. ADMISSIONS

3. Defendant admits that it is a Texas corporation with its principal place of business in Austin, Texas.

4. Defendant admits that the Master Services Agreement dated March 15, 2023, and Amendment No. 1 dated January 22, 2024, exist and were executed by the parties.

5. Defendant admits that it received Invoices Nos. 1044 and 1045, totaling \$102,100.00, but denies that the amounts are due and owing under the terms of the MSA as amended.

III. DENIAL OF BREACH

6. Defendant specifically denies that it breached the MSA or any provision thereof.

7. Defendant asserts that the services rendered by Plaintiff during Q4 2024 did not conform to the Service Level Addendum (Exhibit A to Amendment No. 1), and that Plaintiff failed to meet the response-time and uptime commitments set forth in the SLA.

8. Defendant further asserts that certain deliverables described in Plaintiff's invoices were not completed or delivered in accordance with the scope of work, and that Plaintiff's failure of performance constitutes a failure of consideration under the MSA.

IV. ADDITIONAL FACTS

9. Defendant received a Notice of Default dated January 28, 2025, and responded by letter dated February 14, 2025, disputing the outstanding invoices and asserting that Plaintiff had not satisfied the SLA obligations under the amended MSA.